

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SEANPAUL REYES and JAMES SCALZO,

Plaintiff(s)

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, JOHNATHAN ORTEGA, FRANKLYN
GUAMAN, OSCAR MANCILLA, NICHOLAS SOMMELLA,
and JOHN or JANE DOE 1-3,

Defendant(s)
-----X

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint of the plaintiff(s) herein and to serve a copy of your answer on the plaintiff(s) at the address indicated below within 20 days after the service of this Summons (not counting the day of service itself), or within 30 days after service is complete if the Summons is not delivered personally to you within the State of New York.

YOU ARE HEREBY NOTIFIED THAT should you fail to timely answer, a judgment will be entered against you by default for the relief demanded in the complaint.

The action will be heard in the Supreme Court of the State of New York, County of Kings. This action is brought in Kings County because that is where the claim arose.

Dated: August 23, 2024
Brooklyn, NY

SUMMONS

Index No. _____ / ____

Plaintiffs designate Kings County as
the place of trial.

The basis of venue is:
Location of the incident.

URIEL LAW FIRM, PC
Attorneys-at-Law
540 Court Street #4011
Brooklyn, NY 11231
833-733-4448

By:


Jacob Uriel, Esq.
Attorney for Plaintiffs

TO:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10038

NEW YORK CITY POLICE OFFICERS JOHNATHAN ORTEGA, FRANKLYN GUAMAN,
OSCAR MANCILLA, NICHOLAS SOMMELLA, and JOHN or JANE DOE 1-3
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

SEANPAUL REYES and JAMES SCALZO,

VERIFIED COMPLAINT

Plaintiff(s)

Index No.

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, JOHNATHAN ORTEGA, FRANKLYN
GUAMAN, OSCAR MANCILLA, NICHOLAS SOMMELLA,
and JOHN or JANE DOE 1-3,

Defendant(s)

-----X

Plaintiffs, SEANPAUL REYES and JAMES SCALZO, by their attorneys, URIEL LAW FIRM,
PC, as and for their Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights/tort action brought to vindicate plaintiffs' rights under the First, Fourth, and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, as amended, codified as 42 U.S.C. §§ 1983 and 1988, and under the laws of the State of New York. Plaintiffs seek compensatory damages, punitive damages and attorney's fees.

JURISDICTION AND VENUE

2. Venue is properly laid in the Supreme Court of the State of New York, County of Kings, because the incident took place in Kings County and Defendants regularly and substantially conduct business in Kings County as defined in C.P.L.R. § 503(a)–(b).

GENERAL MUNICIPAL LAW COMPLIANCE

1. All Plaintiffs timely served Notices of Claim on the municipal Defendant and complied

with all conditions precedent to commencing an action under state law.

2. At least thirty days have elapsed since service of Plaintiffs' Notices of Claim and adjustment and payment thereof has been neglected or refused.

3. A Municipal Law 50-H hearing was conducted for each Plaintiff.

4. Plaintiffs have initiated this action within one year and ninety days of the accrual of Plaintiffs' claims pursuant to New York State Law

PARTIES

5. Mr. Reyes was, at all times relevant to the action, a resident of Suffolk County in the State of New York.

6. Mr. Scalzo was, at all times relevant to the action, a resident of Suffolk County in the State of New York.

7. Defendant the City of New York ("City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, and does maintain Defendant New York City Police Department ("NYPD"), which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers because said risks attach to the public consumers of the services provided by the NYPD. Any reference to a claim against the City also includes a claim against the NYPD.

8. At all times hereinafter mentioned, Defendant NYPD Officer Jonathan ORTEGA (Shield # 1852, Tax Registration #961043, Command 075); Defendant NYPD Officer Franklyn GUAMAN (Shield # 6937, Tax Registration #970573, Command 075); Defendant NYPD

Officer Oscar MANCILLA (Shield # 456, Tax Registration # 959782, Command 075);

Defendant NYPD Officer Nicholas SOMMELLA (Shield # 22101, Tax Registration # 963764, Command 075); NYPD Members Jane Does 1-2; and NYPD Supervisor John Doe 1 were NYPD members who violated Plaintiffs' rights, as set forth more fully below.

a. Defendant Jane Doe 1 appears to be a Black female in a blue NYPD uniform with black hair in a bun. Her shield appears to be # 27292, which belongs to Police Officer Kayla A. Jack (Tax # 968506) who was assigned to the 75 Precinct at all times relevant to this action.

b. Defendant Jane Doe 2 appears to be a Black female in a blue NYPD uniform with black hair in a bun. appears to be a Black female in civilian clothing with black braids.

c. Defendant John Doe 3 appears to be stocky White or Latino male in a blue NYPD uniform with a short black hair and a short beard. He appears to wear a Sergeant's shield and is sitting at the Sergeant's desk for all times relevant to this action.

9. The true names and shield numbers of Defendants John and Jane Does 1 to 3¹ are not currently known to the Plaintiffs. However, they are employees or agents of the NYPD. Accordingly, they are entitled to representation in the action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiffs intend to name said NYPD employees as Defendants in an amended pleading once the true name numbers of said Defendants become known to Plaintiffs and (b) that the Law Department should immediately begin preparing their defense in the action.

¹ By identifying these Defendants as "John Does" and Jane Does," Plaintiffs are making no representations as to the gender of said Defendants.

10. In this Complaint, Defendants Ortega, Guaman, Mancilla, Sommella, John and Jane Does 1–3 are collectively referred to as the “Individual Defendants.”

11. The Individual Defendants are being sued in their individual capacities.

12. At all times hereinafter mentioned, Defendants were employed by the City of New York as members of the NYPD.

13. At all times hereinafter mentioned, Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

14. Each and all of the acts and omissions of the Defendants alleged herein occurred while said Defendants were acting within the scope of their employment by the Defendant City.

15. Defendants were duly appointed and acting officers, servants, employees, and agents of Defendant City who were acting for, and on behalf of, and with the power and authority vested in them by Defendant City, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

16. Defendants were each and all responsible, in whole and/or in part, for the planning for and/or creation, promulgation, implementation, and/or enforcement of the unconstitutional policies, practices and/or customs complained of herein, and/or condoned, acquiesced in, adopted, and/or approved of the same, through their acts and/or failures to act, as set forth more fully below.

17. At all times relevant herein, and as set forth more fully below, Defendants’ actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or

omissions.

18. Although they were aware of the conduct, present for it, and knew or should have known it was unconstitutional, at no time did any of the Defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the unconstitutional conduct engaged in by their fellow officers.

19. Any statements attributed to the Plaintiffs or Defendants in this pleading are made in sum and in substance.

STATEMENT OF FACTS

20. The New York City Police Department, at all times relevant to this action, had a policy which prohibited any filming, photography, or other recording (collectively referred to as “recording”) inside of their police precincts, including publicly accessible areas of the precincts.

21. The above-described policy is not based on any legislative authority and is violative of the Federal and New York State Constitutions and various state and local statutes.

22. The NYPD policy is memorialized in the NYPD Administrative Guide, procedure no. 304-21 and Patrol Guide procedure number 203-29.

23. On information and belief, the NYPD enforces this policy by charging those who continue to recording with Trespass and other related offenses.

24. SeanPaul Reyes is a journalist who conducts public business with public officials (including police officers), while recording the encounters. He is the owner of Long Island Audit, Inc., a domestic corporation.

25. Mr. Reyes’ sincere belief is that recording public officials, including police officers, in the performance of their duties is an essential means of holding them accountable to the public at

large and falls squarely within protected expressive speech and press activity as articulated in the First Amendment to the United States constitution and incorporated to the states by the Fourteenth Amendment. Mr. Reyes hopes, by drawing attention to police abuse through his journalism and activism, that such abuse can be addressed and eventually eliminated.

26. Mr. Reyes edits the raw videos of these encounters (for clarity and length, but not substantive content) and posts them on his YouTube channel, where he is known as “Long Island Audit.”² Long Island Audit has over 750,000 subscribers and millions off monthly views.

27. Mr. Reyes also posts videos recorded by others which capture police officers and other public servants abusing their authority.

28. Recently, Mr. Reyes has been a guest speaker and trainer at several local police departments in the tri-state area, bridging the divide between law enforcement and the public.

29. The New York Police Department’s (“NYPD”) 75th Precinct (“the 75”) is located at 1000 Sutter Avenue, in Brooklyn, New York. The public front lobby of the 75 is separated from the street by a vestibule. The vestibule is sandwiched by six transparent glass doors, three on the vestibule’s Sutter Avenue side and three on the public lobby side. Once past the vestibule and inside the lobby, there is a glass wall and several glass doors that lead into the non-public portion of the precinct. A person standing on the public sidewalk on Sutter Avenue and looking through the glass doors has an unobstructed view inside of the precinct.

30. The doors on both sides of the vestibule remain unlocked throughout the day and members of the public are ostensibly welcome to freely enter the vestibule and public lobby.

31. Inside the lobby, on the glass partition that separates the lobby from the restricted portion of the precinct, is a small sign advising the public, in sum and in substance, that recording

² The YouTube channel is available at: <https://www.youtube.com/c/LongIslandAudit>

by members of the public is not allowed inside the precinct. This sign cites no lawful authority in support of this bold declaration.

32. Also, inside of the public lobby of the 75, the NYPD posted several public notices. Some of these notices have quick-response (“QR”) codes which require the use of a cellular phone’s camera.

33. There are surveillance video cameras inside the public lobby of the precinct which record and save video.

34. On June 1, 2023 at approximately 11:10am, Mr. Reyes visited the 75 for three reasons. The first was to request a complaint form, the second was to file a complaint, and the third was to document the process consistent with his personal and journalistic purposes.

35. Mr. Scalzo, as an independent contractor, went to the Precinct with Mr. Reyes to better document the interaction.

36. Before entering the 75, Mr. Reyes began recording audio and video. Mr. Reyes did not attempt to hide his behavior. Mr. Scalzo also began filming, but did not enter the 75 at that time.

37. Shortly after Mr. Reyes entered the lobby, he encountered NYPD member Jane Doe 1, who was standing in doorway between the public lobby and non-public section of the precinct. Jane Doe 1 told Mr. Reyes, in sum and in substance, “you can’t be recording in here,” but she did not threaten to trespass or arrest Mr. Reyes.

38. Mr. Reyes then asked Jane Doe 1 for her name and shield number, but Jane Doe 1 did not answer. Jane Doe 1 then repeatedly yelled into the non-public section of the precinct, in sum and in substance, that Mr. Reyes “keeps recording in the precinct.”

39. At the same time Mr. Reyes was confronted by Jane Doe 1, Jane Doe 2 entered the public lobby from the street. Jane Does 1 and 2 then entered the restricted area of the precinct and Jane Doe 2 closed the door behind them.

40. On information and belief, once inside the non-public area of the precinct, Jane Does 1 and 2 spoke to Defendants John Doe 1, Ortega, Guaman, Mancilla and/or Sommella to complain about Mr. Reyes' filming and Jane Doe 2 pointed in the general direction of Mr. Reyes. Whereupon, Defendant John Doe 1 directed defendant's Ortega, Guaman, Mancilla, Sommella to confront Mr. Reyes.

41. Moments later, Defendants Ortega, Guaman, Mancilla, and Sommella exited the restricted portion of the precinct and confronted Mr. Reyes.

42. Defendant Ortega told Mr. Reyes, in sum and in substance, "you can't record inside of here, I'm going to ask you to step out." Mr. Reyes asked Defendant Ortega to speak to a supervisor, but Defendant Ortega refused. Defendant Ortega then grabbed Mr. Reyes about the right arm, Defendant Mancilla grabbed Mr. Reyes about the left arm, and Defendants Ortega, Mancilla, and Guaman shoved Mr. Reyes about the torso and pushed him out of the precinct and onto the street.

43. While outside on the public sidewalk, Defendants Ortega and Mancilla continued to insist that Mr. Reyes could not film inside of the precinct's lobby and repeatedly placed their hands on his chest.

44. Mr. Reyes then took several steps towards the entrance to the vestibule, but remained fully on the public sidewalk, whereupon Defendant's Mancilla and Ortega violently shoved Mr. Reyes about the torso. Officer Ortega then continued to place his hand on Mr. Reyes' chest while Defendant's Ortega, Mancilla, Guaman, and Sommella refused to allow Mr. Reyes to enter the precinct.

45. Mr. Reyes then re-entered the public lobby, whereupon defendant's Ortega, Mancilla, Guaman, and Sommella placed Mr. Reyes in handcuffs.

46. As Mr. Reyes was brought before the desk sergeant, John Doe 3, Defendant Mancilla told Defendant John Doe 3 "you saw it, right?" John Doe 3 then appeared to accent both to Defendant Mancilla's question and to Mr. Reyes's arrest.

47. Shortly after Mr. Reyes' arrest, a female (presumably Jane Doe 1) asked another police officer to "delete that shit."

48. On information and belief, the above-mentioned female (presumably Jane Doe 1) was referring to the recording Mr. Reyes had taken.

49. After being Arrested, Mr. Reyes's camera, tripod, microphone, and other property was taken from him by Defendant's Ortega, Mancilla, Guaman in the presence of Jane Doe 1 and John Doe 1. The property was ultimately vouchered as arrest evidence.

50. Through Mr. Reye's interaction with Defendants Ortega, Mancilla, Guaman, and Sommella and John Doe 1, Mr. Reyes was attempting to inform those Defendants that he was allowed to film per New York City's Right to Record act as well as New York State's Right to Monitor act.

51. Through the events described above, Mr. Scalzo was filming the incident from the public sidewalk.

52. After Mr. Reyes was arrested, Mr. Scalzo entered the public vestibule of the precinct while filming. Defendant Ortega approached Mr. Scalzo and ordered him to leave the building because he was filming. Defendant Ortega then walked towards Mr. Scalzo menacingly, forcing Mr. Scalzo to backstep out of the precinct.

53. When Mr. Scalzo was already outside of the precinct, Defendant Ortega closed the precinct's sidewalk facing door while Mr. Scalzo's wrist was still within the doorframe, causing physical contact with Mr. Scalzo.

54. Following the arrest, Mr. Reyes was searched, forced to remove some of his clothing, and held in a holding cell at the Precinct for several hours. Mr. Reyes was then transported to Brooklyn Central Booking and was not released until early the next morning.

55. While processing Mr. Reyes's arrest, the Defendants Ortega and Guaman requested that the Kings County District Attorney's Office seek full orders of protection against Mr. Reyes and in favor of Defendants Ortega and Guaman.

56. On information and belief, as a result of the request for a protective order, Mr. Reyes was denied a desk appearance ticket ("DAT") for which he would have been otherwise eligible (CPL § 150.20[1][a]). The sole reason for the denial appears to be that two officers requested orders of protection in an apparent retaliatory scheme to keep Mr. Reyes' in custody longer than legally authorized by misusing CPL § 150.20[1][b][vi] to subvert Mr. Reyes' right to a DAT.

57. On information and belief, protective orders are almost never issued for police officers in New York city, and the Criminal Court refused to grant them.

58. On information and belief, during arrest processing and in conversations with the Kings County District Attorney's Office, Defendants Ortega and Guaman conspired to fabricate a claim that Mr. Reyes had obstructed governmental administration.

59. In the accusatory instrument, Police Officer Ortega falsely swore that the precinct is a dwelling, which it clearly is not.

60. All charges against Mr. Reyes were dismissed by the New York City Criminal Court. The docket number was CR-019322-23KN.

61. Mr. Reyes was forced to hire an attorney and appear in court on multiple occasions because of this arrest.

FIRST CLAIM
Freedom of Speech Retaliation Claim under New York State Law
(Plaintiffs against all defendants)

62. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

63. Plaintiffs were engaged in speech and press activities that were protected by section 8, of Article I to the constitution of the State of New York.

64. Defendants committed impermissible or unlawful actions against Plaintiffs that were motivated or substantially caused by Plaintiffs' constitutionally protected speech or activities.

65. Defendants' retaliatory actions against Mr. Reyes resulted in the deprivation of his liberty and the initiation of criminal charges against him.

66. Defendants' retaliatory actions against Mr. Sazlo resulted in him being forced from a public area in which he was lawfully permitted to be.

67. Accordingly, Plaintiffs' rights to engage in protected speech and activities, guaranteed and protected by section 8, of Article I to the constitution of the State of New York, were violated by Defendants.

68. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondent superior*.

69. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the

damages hereinbefore alleged.

70. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing Plaintiffs from further pursuing said protected speech or activities or by chilling Plaintiffs' desire to further participate or engage in such protected speech or activities.

SECOND CLAIM

**First Amendment Retaliation Claim Under 42 U.S.C. § 1983
(Plaintiffs Against Individual NYPD Defendants)**

71. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

72. Plaintiffs engaged in speech and activities that were protected by the First Amendment to the United States Constitution

73. Defendants committed impermissible or unlawful actions against Plaintiffs that were motivated or substantially caused by Plaintiffs' constitutionally protected speech or activities.

74. Defendants' retaliatory actions against Mr. Reyes resulted in the deprivation of his liberty and the initiation of criminal charges against him.

75. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities, or by chilling his desire to further participate or engage in such protected speech or activities.

76. Accordingly, Plaintiffs' right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, was violated

by Defendants.

77. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CLAIM
Unlawful Search & Seizure Under New York State Law
(Mr. Reyes against Defendants)

78. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

79. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

80. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

81. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

82. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

83. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to section 12, of Article I to the constitution of the State of New York and section 8, Article II, of the New York Civil Rights Law.

84. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

85. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CLAIM**Unlawful Search & Seizure Under 42 U.S.C. § 1983
(Mr. Reyes against Individual NYPD Defendants)**

86. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

87. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

88. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

89. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

90. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

91. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

92. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CLAIM**Assault and Battery Under New York State Law
(Mr. Reyes against Defendants)**

93. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

94. At all relevant times, Defendants caused Plaintiff to fear for his physical well-being and safety and placed Plaintiff in apprehension of immediate harmful and/or offensive

touching.

95. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered his without his consent or justification.

96. Defendant City of New York as employers of the Individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

97. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered damages.

SIXTH CLAIM

Assault and Battery Under New York State Law (Mr. Scalzo against Defendants City and Ortega)

98. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

99. At all relevant times, Defendant Ortega caused Plaintiff to fear for his physical well-being and safety and placed Plaintiff in apprehension of immediate harmful and/or offensive touching.

100. Defendant Ortega engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered his without his consent or justification.

101. Defendant City of New York as employers of Defendant Ortega, is responsible for his wrongdoings under the doctrine of *respondeat superior*.

102. Due to the intentional, willful and unlawful acts of Defendant Ortrga, Plaintiff suffered damages.

SEVENTH CLAIM**Conversion under New York State Law
(Mr. Reyes Against Defendants)**

103. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

104. Defendants committed conversion by intentionally taking possession of and/or interfering with Plaintiff's personal property in derogation of Plaintiff's rights.

105. Defendant City of New York as employers of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

EIGHT CLAIM**Excessive Detention under New York State Law
(Mr. Reyes Against Defendants)**

106. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

107. Defendants deliberately detained Plaintiff for excessive and unreasonably prolonged periods of time.

108. Defendants conspired to request protective orders, which are almost never granted to Police Officers, and which were denied by the New York City Criminal Court, as a means to unlawfully and unreasonably prolong Mr. Reyes' detention.

109. Defendant City of New York as employers of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

NINTH CLAIM**Malicious Prosecution under New York State Law
(Mr. Reyes Against Defendants)**

110. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

111. Defendants commenced criminal proceedings against Plaintiffs maliciously and without probable cause.

112. All charges were terminated in Plaintiff's favor.

113. Defendant City of New York as employers of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

TENTH CLAIM
Violations of the New York State Constitution
(Plaintiffs Against Defendants)

114. Defendants, acting under color of law, violated Plaintiffs' rights pursuant to Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution.

115. A damages remedy here is necessary to effectuate the purposes of Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution, and appropriate to ensure full realizations of Plaintiffs' rights under those sections.

116. As a result of Defendants' acts and omissions, Defendants deprived Plaintiffs of their federal, state, and/or other legal rights; caused Plaintiffs bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiffs to expend costs and expenses; and/or otherwise damaged and injured Plaintiffs.

117. Defendants' unlawful conduct was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

ELEVENTH CLAIM
Excessive Force Under 42 U.S.C. § 1983
(Mr. Reyes Against Individual NYPD Defendants)

118. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

119. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth

Amendments, because they used unreasonable force without Plaintiff's consent.

120. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent.

121. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CLAIM

Unlawful Interference with Recording Law Enforcement Activity Under NY State Law (Plaintiffs versus Defendants)

122. The above paragraphs are here incorporated by reference as though fully set forth.

123. Plaintiffs, while not under arrest or in the custody of a law enforcement officials, were lawfully recording law enforcement activity without physically interfering with law enforcement activity or otherwise constituting a crime defined in the penal law involving obstructing governmental administration.

124. Defendants unlawfully interfered with Plaintiffs' right to record law enforcement activity by threatening plaintiff for recording such activity, commanding plaintiff to cease recording, stopping, seizing, searching, ticketing and/or arresting Plaintiffs for recording and by unlawfully seizing property or instruments used by Mr. Reyes to record, unlawfully destroying, or seizing a recorded image, or copying such a recording without the consent of plaintiff or approval from an appropriate court.

125. Accordingly, Plaintiffs' right to record law enforcement activities, pursuant to Section 79- P of the New York Civil Rights Law, was violated by defendants.

126. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

127. Defendant City of New York is also liable for creating and sanctioning the unlawful NYPD policy that prevents members of the public from filming in publicly accessible sections of the precinct.

THIRTEENTH CLAIM

**Unlawful Interference with Recording Law Enforcement Activity Under NY City Law
(Plaintiffs versus Defendants)**

128. The above paragraphs are here incorporated by reference as though fully set forth.

129. Plaintiffs, while not under arrest or in the custody of a law enforcement officials, were lawfully recording law enforcement activity without physically interfering with law enforcement activity or otherwise constituting a crime defined in the penal law involving obstructing governmental administration.

130. Defendants unlawfully interfered with Plaintiffs' right to record law enforcement activity by threatening plaintiffs for recording such activity, commanding plaintiffs to cease recording, stopping, seizing, searching, ticketing and/or arresting Plaintiffs for recording and by unlawfully seizing property or instruments used by Mr. Reyes to record, unlawfully destroying, or seizing a recorded image, or copying such a recording without the consent of plaintiff or approval from an appropriate court.

131. Accordingly, Plaintiffs' right to record law enforcement activities, pursuant to Section 14-189 of the New York City Administrative Code, were violated by defendants.

132. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

133. Defendant City of New York is also liable for creating and sanctioning the unlawful NYPD policy that prevents members of the public from filming in publicly accessible sections of the precinct.

FIFTEENTH CLAIM**Failure to Intervene Under New York State Law
(Plaintiffs against Defendants)**

134. The above paragraphs are here incorporated by reference as though fully set forth herein.

135. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene

136. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth, Sixth or Fourteenth Amendments.

137. Defendants City of New York, as employers of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

138. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CLAIM**Negligent Hiring, Training, Retention or Supervision Under New York State Law
(Plaintiffs against Defendants)**

139. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

140. Defendant City owed duties of care to Plaintiffs to adequately hire, train, retain or supervise their employees, including the individually named defendants herein.

141. Defendant City breached those duties of care.

142. Defendants City placed the individually named defendants in positions they could inflict foreseeable harm.

143. Defendants City knew or should have known of that their employees, including the individually named defendants herein, exhibited substantial propensities for committing civil rights violations against members of the public, such as Plaintiffs.

144. Defendants City failed to take reasonable measures in hiring, training, retaining or supervising their employees, including the individually named defendants herein, that would have prevented the aforesaid injuries to Plaintiffs.

145. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTEENTH CLAIM

**Violation of Victims of Violent Crime Protection Act Under New York City Law
(Mr. Reyes Against Defendants)**

146. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

147. Defendants' acts or series of acts constituted a misdemeanor or felony against Plaintiff, as defined in state or federal law which presented a serious risk of physical injury to Plaintiff, whether or not such acts have actually resulted in criminal charges, prosecution or conviction.

148. Accordingly, Defendants committed a crime of violence against Plaintiff and violated Plaintiff's rights, pursuant to the section 10-403 of the Administrative Code of the City of New York.

149. Defendants City as employers of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*. 190. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CLAIM**Municipal “Monell” Liability Under 42 U.S.C. § 1983
(Plaintiffs Against Defendant City)**

150. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

151. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiffs, to such violative behavior.

152. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

153. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City’s deliberate indifference toward the rights of those who may come into contact with Defendant City’s employees.

154. Defendant City’s employees engaged in such egregious and flagrant violations of Plaintiff’s Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City’s employees.

155. Defendant City’s repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

156. Defendant City’s conduct caused Plaintiffs to be deprived of their civil rights, as

guaranteed by the Constitution of the United States vis-à-vis the First, Fourth, Fifth, Sixth or Fourteenth Amendments thereto.

157. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINETEENTH CLAIM

Malicious Prosecution Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff Reyes' Rights Protected Under the Fourth and Fourteenth Amendments to the United States Constitution

158. Plaintiff hereby incorporate by reference the allegations set forth in all preceding and subsequent paragraphs as if fully set forth herein.

159. Upon information and belief, Defendants misrepresented and falsified evidence to the prosecutor and/or failed to make a full statement of the relevant evidence – including potentially exculpatory evidence - to the prosecutor.

160. Defendants were directly and actively involved in the initiation or prosecution of criminal proceedings against Plaintiff, including by supplying and creating false information to be included in NYPD paperwork that was included in NYPD paperwork, providing falsely sworn information in accusatory instruments, and/or providing false information to the prosecutor.

161. Defendants lacked probable cause to initiate and continue criminal proceedings against Plaintiff.

162. Defendants acted with malice in initiating criminal proceedings against Plaintiff.

163. Notwithstanding Defendants' misconduct, the criminal proceedings against Plaintiffs were favorably terminated on the merits.

164. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering,

psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

165. Defendants' unlawful conduct was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

TWENTIETH CLAIM

Deprivation of Fair Trial Rights Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiffs Reyes' Rights Protected Under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution

166. Plaintiff incorporate by reference the allegations set forth in all preceding and subsequent paragraphs as if fully set forth herein.

167. Defendants fabricated evidence of a material nature, likely to influence a jury's decision, intentionally forwarded that evidence to prosecutors, as a result of which Plaintiff suffered liberty deprivations and other injuries.

168. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiffs bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

169. Defendants' unlawful conduct was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

JURY DEMAND

Plaintiffs demands a trial by jury in this action on each and every one of his damages claims.

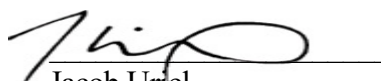
DEMAND FOR RELIEF

WHEREFORE, Plaintiffs demand judgment against the individual Defendants and the City of New York as follows:

- i. Actual and punitive damages, exceeding the statutory cap of all lower courts, against the individual Defendants in an amount to be determined at trial;
- ii. Actual damages, exceeding the statutory cap of all lower courts, in an amount to be determined at trial against the City of New York and New York City Police Department;
- iii. Statutory attorney's fees, disbursements, and costs of the action pursuant to, inter alia, 42 U.S.C. §1983, New York Civil Rights Law § 79-P(3)(d), New York City Administrative Code § 14-189 and New York common law; and
- iv. Such other relief as the Court deems just and proper.

Dated: August 23, 2024
Brooklyn, New York

Respectfully Submitted,



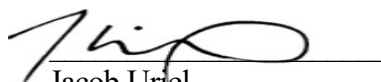
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ATTORNEY'S VERIFICATION

I, JACOB URIEL, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1. I am the attorney of record for the Plaintiffs.
2. I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true.
3. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
4. I make this verification because Plaintiffs do not reside in the County (Kings) where I maintain my offices.

Dated: Brooklyn, New York
August 23, 2024



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